The Role of Parliament in Peacebuilding in Ethiopia

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Abstract

This paper examined the role of parliament in peacebuilding and major causes of conflicts using qualitative research approach. Data is collected through document analysis and from the observed facts. The right to peace is not ensured by the government bodies. Based on these premises, the conflict and violence is common Ethiopia and resulted in loss of human life and destruction of property. Conflict is inevitable, normal and even healthy or unhealthy part of peoples relationships particularly in the control of political power and resources like land. After all, two or more groups of people can't be expected to agree on everything at all times so peoples need to change the way they understand and deal with the conflict. When conflict is mismanaged, nor resolved, not prevented, and not transformed, we can't build peace. A parliament have greater role in peacebuilding through resolving grievances on time, reducing the repressive nature of the government, making clear of separation of power to reduce the domination of the executive in the management of state affairs, realizing the resource based early warning and response mechanism to manage conflicts related to land ownership, and boundaries. However, the involvements of Ethiopian parliament in such types of peacebuilding issues are very poor. The parliament should support the local units by enhancing synergies between formal and traditional mechanisms on conflict prevention and peace-building.

Keywords:

Parliament, Peacebuilding, Conflict, Ethiopia, Politics.

1. Introduction

Parliaments are playing avital role in conflict prevention, resolution and management in different parts of the world. They are serving as venues where groups that have been fighting each other in the past now sit at the table and attempt to resolve their differences with words instead of bullets. Most

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importantly, parliament, when properly constituted and representative of the people, gives a stake to all citizens in the democratic process, and ultimately helps to consolidate peace (Draman, 2009). In the parliamentary democracy the essential role of the parliament is keeping an eye on the activities of the executive and holding the executive account on the behalf of the country's citizens (Tsekpo, and Hudson, 2009). In a democratic system, institutions can play a key role in resolving political crisis and bring sustainable peace. The parliament represents different people that have different interest and questions. Hence the parliament is one of the democratic institutions that help as bridge to bring together the people that have different interest and questions. The 1995 FDRE constitution is also granted this right to the Ethiopian parliament. However, in some countries, these institutions are strongly fused. For instance, in most African countries including Ethiopia, there are no independent democratic institutions as there is a tendency of interference of one institution in the affairs of the other. In Ethiopia, for more than four decades democratic institutions had been dominated by the king (Haile Selassie 1931-1974), and under the military government as well as under the rule of EPRDF it was dominated through executive organ. Underneath this condition it is difficult for parliament function their constitutional responsibility (Solomon, 2023). According to the FDRE constitution that was adopted in 1995, The Ethiopian parliament, officially known as the Federal Parliamentary Assembly (FDRE constitution, 1995). It is responsible for making laws, overseeing the executive branch, and representing the interests of the Ethiopian people (Solomon, 2021). Based on this, Legal considerations play a crucial role in the functioning of the Ethiopian parliament. However, the Ethiopian parliament has been weak from the past to present. The formal functions of the Ethiopian parliament include representing the people in one of the most important institutions of national governance, scrutinizing the work of the executive, and taking measures to address government ineptitude where necessary; establishing and organizing different committees and other necessary structures of the House; approving or appointing government officials; and facilitating the conditions for members of parliament to meet with the electorate in their respective constituencies. In addition to its law making function, the House of People's Representatives (HoPR) approves general economic, social and development policies and strategies as well as fiscal and monetary policy of the country (Article 55/10); and approves and amends the federal budget and levies taxes and duties on revenue sources reserved to the Federal Government (Article 55/11). In fulfilling their representational duties, party rules stipulate that parliamentarians must interact with their constituencies at least twice a year so

that they can consider voter concerns and preferences in the law and policy making process. In the final analysis, however, these ritual functions have been of little relevance in creating an effectively functioning parliamentary system of government, administration, scrutiny and engagement with the public. As a result, the country has to go a long way before 'deep democracy' takes root (Arjun, 2001).

2. Methodology

The analysis of this research is focused on secondary data sources on the role of Ethiopian parliament in peacebuilding. Various written documents are reviewed and employing an analysis of existing studies qualitatively. This study aims to investigate the role of Ethiopian parliaments in peace building as the Ethiopian society is conflict ridden and the main sources of conflicts.

3. Theoretical Framework

3.1. The Democratic Peace Theory

The democratic peace thesis, widely accepted among international relations theorists, posits that democracies rarely go to war with other democracies and, by extension, have non-violent methods of resolving internal disputes. Today, democracy is synonymous with peaceful conflict management. Conflicts occur in all societies but when managed peacefully, they can sometimes spark positive social and economic reforms. Societies are confronted daily with conflicts of all kinds, but only those societies that subscribe to the democratic ethos are able to manage conflictual situations within their borders and resolve them peacefully (Draman, 2009). This theoretical framework serves as a lens through which the researcher can examine the role of parliament in peacebuilding.

4. Findings and Discussions

4.1. Sources of conflicts

Conflicts erode human progress and degrade the institutional infrastructure and capacity for sustainable peace and development. It disrupts commerce, learning and the provision of health services, and plunges people into poverty and destitution, with the most vulnerable and marginalized sections of society bearing the disproportionate burden of violent conflicts. Conflicts have many causes and kinds the causes for conflicts are the following;

1. Repressive nature of government, the federal and regional governments does not create the space for negotiation/dialogue.

2. Government's negligence to resolve grievances on time. People with grievances are thus left with only one option to make their case: the use of force. In such states, parliaments provide an important venue where differences are resolved. In fact, in such situations, parliaments are able to substitute the resort to physical violence with dialogue, and the rule of force with the rule of law. Example: the land ownership grievance of the Amhara people in Metekele, and Raya Alamata and other areas of Ethiopia.

3. Lack clear of separation of power: The Executive dominates the management of state affairs. In most fragile states, the Executive hides behind the cloak of "peacebuilding" to pursue policies that are dictatorial. These policies tend to take the country back to instability. The heavy hand of the Executive can be neutralized if parliament is strong and effective.

4. Natural resources: Conflict of resources scarcity relate to land and water rights

5. The abuse of ethnicity: Political leaders in some countries have made increasing use of ethnic hatred. Such abuse prolongs conflict, and creates long term divisions that reduce the effectiveness of peacebuilding efforts.

6. Limited Enabling Environment: Lack of the rule of law, access to basic services, lack of security and well-being.

4.2. The Role of parliaments in peace building

The constitution remits the HoF as the legislative governmental organ responsible for conflict mitigation. The House is responsible for issues relating to the rights of Nations, Nationalities and Peoples. It can decide on the right of self-determination, including the right to secession and it can identify solutions to disputes or misunderstandings. Based on Professor Nina Caspersen and Dr Gyda Sindre (2020), parliaments have the following contribution or role in peace building

- Implementation of contentious legislation, such as truth commissions, national dialogue is championed by parliament

- Former armed groups are successfully incorporated into the political system in parliament

- Promoting Socio-Economic Equality among the communities

- Facilitating and supporting Reconciliation and transitional justice: taking accountability on the wrong done today and in the past is important to work on poverty reduction to improve the living condition of citizens, using local custom based rituals, working for democratic election are also important.

- Supporting the Justice Reform and reconciliation process: The base for peace is justice. Justice and reconciliation are critical for peace-building as a measure to transform conflict. Whatever policy action or methodology is adopted by government is informed by the imperative of how to balance the needs for different types of justice and reconciliation. Emerging practice suggest that legal accountability is conceived as an integral part of the reconciliation process, thus there can be no reconciliation without justice. Accordingly parliamentarians need to work on the following issues:

- Making constitutional and legal reforms to consolidate peace, and democracy

- Ensuring impartial justice system

- Working for the improvement of the security sector

- Strengthening the human right protection mechanisms like the human right commission and ombudsman

- Peace education: Working for the inclusion and provision of peace education in the formal education system: building social capital through a culture of peace necessitates the design and implementation of activities that generate knowledge, enhance leadership skills and inculcate attitudes that will allow people of all ages, and at all levels, to develop the behavioral changes that can education should incorporate the wider government policy on expanding access and improving quality of education. For peace education to optimize it positive role in building social capital, it needs to adopt a holistic approach that addresses

multiple actors and multiple methods that link the wider policy environment to the local context and vice versa. Experience suggest that beyond the narrow objective of raising awareness, peace education should empower and encourage ownership of local initiatives which bring positive change in communities. For example, by focusing on community-based learning and learning in communities the capacity of Peace Clubs should be enhanced in various topics such as managing micro project of peace, reconciliation mechanisms, leadership, human rights, local governance (UNDP,2012).

- Supporting the local units to enhancing synergies between formal and traditional mechanisms on conflict prevention and peace-building: Considering these local communities and villages are resorting to traditional mechanisms for peace-building (Huyse and Salter,2008), there is need to explore policy options on how interpersonal and community-based practices can live side by side with state-organized forms of retributive justice.

- Making a law to enable the peacebuilding policy to resolve the current problem or grievances not the historical

- Creating and provide support to the Local Governance improvement program for the prevalence of peace: democratic institutions and good governance structures should be decentralized to promote inclusive politics and advocate for pluralism in a manner that contributes positively to nation building, and that links short-term intervention measures and long-term development perspectives, including dealing with root causes of the conflict, in particular poor governance. These institutions should focus on transformation of leadership (traditional and political) and society, through processes of developing a collective national vision that delivers more cohesive and responsive systems of governance from the national to the grassroots levels.

4.3. Direct Parliamentary Oversight of Government

There are a number of ways parliament can provide oversight to directly keep the government and public officials accountable. One of the most important tools at their disposal is the parliamentary oversight committee. Other tools include questioning Ministers on the floor of parliament at question time, conducting

public hearings and inquiries, promoting the independent, adequate staffing of supreme audit institutions, anti-corruption commissions, and other specialized agencies. Another tool to support oversight is to promote a diverse media landscape, ensuring the protection of journalists, the support for freedom of information legislation and media accountability. Parliamentary oversight committees have the potential to contribute to conflict prevention by: (i) ensuring that the policies and actions of the government are responsive to public demand; and (ii) being aware of how their work reinforces the public's belief in the integrity of the government. Two types of committees essential for parliament to fulfill its oversight function and encourage peace and stability in conflict affected countries are: (a) specialized financial, or "money" committees which provide oversight of the budgetary process; and (b) parliamentary committees that provide oversight of the security sector so as to strengthen democratic control of the military, police services and intelligence sector.

4.4. Creating a more representative parliament

All peoples needs to be represented whether they are living in the region of their ethnic group or not because parliament is a forum that utilizes dialogue and discussion to find workable solutions for problems within communities that satisfy, to a greater or lesser extent, all parties. Ultimately, a representative parliament is better able to contribute to peacebuilding by bringing together members from all groups in society who, through collaboration, begin to develop a common vision that accommodates the interests of all groups. As a constitutionally mandated institution, parliament provides a permanent forum where representatives from groups with divergent interests can come together and channel their actions to help shape legislation and policies. If each parliamentarian ensures that the legislature responds to the needs of her or his community, parliament can help stop communal discord from flaring into violent conflict.

4.5. Strengthening Parliamentary Oversight to Prevent Conflict

Parliament has the specific responsibility to exercise oversight of the executive in order to hold it and its agents accountable for their policies and actions. The important role of parliament in conflict-affected countries is even more pronounced since that that there is now a clearly established correlation between poverty and conflict. By addressing issues of poverty, equitable distribution of

resources and economic development parliamentarians can attempt to guard against the creation of an environment that is prone to enabling conflict.

4.6. Building a Culture of Cooperation in Parliament

As a precondition for parliamentarians being able to conduct their business, members must respect parliament as an institution, and exhibit a willingness to work together to solve common problems. For this reason, before seeking to conduct parliamentary business, whether on the floor of parliament or in committees, any potential animosities that exist need to be addressed. Only after parliamentarians from previously hostile factions reconcile to work together through the political process can they build relationships across party lines and beyond their original group allegiances. For parliament to exercise a leadership role in a broader reconciliation process, parliamentarians themselves need to be able to work together. Parliament must consider confidence-building measures between the governing party and the opposition. The level of confidence between different sides of parliament can be bolstered, for example, by ensuring transparency in decision-making, placing greater importance on the committee structure, and above all, ensuring that all parliamentarians participate in parliamentary business, rather than sidelining certain groups or members.

4.7. Committee Deliberations

Though there are a number of ways parliaments and parliamentarians are able to contribute to peacebuilding, the most notable is through the committee mechanism. There is no single model for the conduct of parliamentary committees. Some countries include the type of committee structure in their constitutions, whilst others have sectoral committees and other countries instigate ad hoc specialized public interest committees.

The decision-making process within committees lends itself to consensus decision making. This occurs when issues are brought before the committee and are resolved through compromise. The committee system enables committee members to bring the specific concerns of their constituents to the decision-making process. In addition, the absence of the public and the media during private negotiations often makes it easier for parliamentarians to make compromises across party lines. This process helps parliamentarians to focus on the substance of the issues without having the pressure to perform in front of a broader audience.

Committees not only contribute to compromise and consensus building, but also provide oversight of the executive by reviewing the budget and examining the conduct of ministers in both presidential and parliamentary systems. In order for committees to be effective, irrespective of the form of the committee structure, parliamentarians who are members of the committees and representatives of the people should be free to question any entity from government.

Parliamentary committees operate as effective peacebuilding models, particularly committees that are issue specific, as they ensure the conflict moves from a people centered approach to a debate about the issues. Furthermore, parliamentarians who have constituencies that are specifically concerned about certain issues, for instance rural communities or minority ethnic and religious groups, are able to bring their concerns to the table and ensure that a compromise solution is reached. In this way parliamentary representatives working in the committee structure are able to work towards satisfying the concerns of their constituents about issues that directly affect them. If the main concerns of all the groups with a vested interest are satisfied there will be no incentive for those groups to resort to violent conflict in order to have their interests met. Furthermore, a successful consensus outcome will act as an incentive for those same groups to continue using parliament as a means of resolving conflicting interests in future.

The size of the committee also has an impact on its effectiveness. Reaching a unanimous committee position across party lines on prospective legislation is far more influential than when a minority report is issued and, in general, the fewer the members on a committee, the easier it will be able to arrive at a consensus position.

4.8. Legislative Development

Aside from providing a forum for the discussion of divergent views, parliament can assist the peacebuilding process by seeking to establish the legislative and institutional framework to help prevent further conflict. When given the opportunity, parliament should pass legislation that creates an environment assisting peacebuilding by encouraging a more accountable and informed system. This type of legislation is usually introduced by the executive but an effective parliament can promote its introduction and, indeed, provoke it through effective political action.

4.9. Parliamentary Oversight of the Security Sector

It is well recognized as an international norm, having been included in the Warsaw Declaration and subsequent United Nations reports that in a functioning democracy a country's military must remain accountable to the democratically elected civilian government. From the perspective of conflict management, a security sector that does not operate to provide security for citizens in a legitimate fashion, and is not democratically accountable is not only unable to prevent conflicts that occur but can also be a source of violence. Therefore, one of the most important tasks a parliament can perform is to assist the executive in its exercise of control over the security sector, thereby providing not just civilian control over the security sector but also democratic oversight, which can only be provided by the parliament as the direct representatives of the people. Oversight of the security sector has traditionally been vested with the executive, which has the ultimate responsibility for the proper operation of security institutions.

5. Creating Cooperation between the Media and parliament

One segment of civil society that should be singled out for special attention is the media. The media plays a vital role in aiding parliament with its peacebuilding function. In particular, the media can muster public support or opposition to decisions made by parliament by disseminating information about the decisions made, such as the evidence parliamentarians considered when deliberating on issues, such as submissions from the community to parliamentary committees and testimony from representatives of relevant government departments, and the published reasons for the decisions. Furthermore, the media has the ability to act as a social barometer, channeling information to parliamentarians about public perception and opinion on the innumerable number of issues parliament must consider. In order to facilitate the media's important role in peacebuilding, parliamentarians should seek to create an environment in which the media sector can operate without undue interference. Parliament can assist the media in performing their vital functions by ensuring the availability of governmental and non-governmental information – or more precisely, parliament needs to ensure that the media has access to the information that is required in order to perform their function, as well as the freedom to report and discuss this information.

5.1. Experience sharing from other more democratic countries parliaments

By forging informal networks or participating in regional and international parliamentary associations, parliamentarians can have an impact on regional or international issues. Such forums or associations promote dialogue among

parliamentarians from different countries and serve as an excellent peacebuilding and conflict prevention model, especially when disputes cross international boundaries. Parliamentary associations are uniquely qualified for this purpose, as those involved have specific knowledge about how parliaments work and the strengths and limitations of parliaments. Similarly, formal regional institutions promote dialogue, build confidence and facilitate learning between members of a region, while helping to mediate disputes and provide a neutral space for dialogue.

6. How do parliaments formally operate in relation to peacebuilding?

The role of parliaments in relation to peacebuilding does not stop once a peace agreement is implemented. Parliaments often play a role in formal policymaking in the areas of conflict resolution and peacebuilding, but this role depends on how they are organised. Parliaments can be organised in ways that ensure inclusivity and enable and promote collaboration across conflict and cleavage lines. Parliamentary inclusivity is relevant in all post-conflict contexts, but the mechanisms designed to promote this differ significantly between the cases – between negotiated peace settlements and conflicts that ended in the victory of one side. Moreover, different types of inclusion are associated with different procedures and rules, and the issues at stake also differ. Below, we first examine the role of parliaments in a deeply contentious area of policymaking: transitional justice. We then examine how parliamentary inclusivity is promoted in different post-conflict cases; when it comes to representation, decision-making rules, and parliamentary committee work. If effective, such rules can turn parliaments into sites of national dialogue and help the move away from violence. We examine the formal operation of parliaments, and some of the tensions this engenders, in relation to the inclusion of former combatants, marginalized communities and the main identity groups.

6.1. Contentious policymaking

Parliaments can be a site for formal policy making in the areas of conflict resolution and peacebuilding. However, the establishment of committees to work specifically in the more contentious policy areas such as reconciliation, transitional justice, and human rights courts remains highly contested. As discussed above, although peace agreements stipulate the establishment of transitional justice mechanism, parliaments often block or halt legislation that enable these mechanisms to be put in place.

6.2. Integrating former combatants

Another important function of post-war parliaments is the integration of former combatants. This is vital for successful peacebuilding, yet often a source of disputes and tensions. Parliaments are important as sites for collaboration across divides and between former enemies to reach on an agreement.

6.3. Inclusivity across the main conflict cleavage

Perhaps the biggest challenge is to ensure inclusivity of the main identity groups. Mechanisms for ensuring this are often at the heart of peace agreements signed in intra-state conflicts. However, the mechanisms vary significantly from case to case, depending on the specific conflict dynamics and the way the armed conflict ended. Below we will outline the main mechanisms, while the following section will examine examples of both positive and negative impacts on peacebuilding resulting from such inclusivity. In power-sharing systems, parliaments play a vital role in minority representation and protections. Power sharing parliaments are typically elected through proportional representation (PR) systems and inclusive legislation is ensured through forms of minority vetoes.

Inclusivity means that parliamentary committees can serve as a forum for inter-communal dialogue, although also sometimes conflict. Compromise tends to be easier when the focus is not on core conflict issues, but such collaborations can pave the way for compromise on more sensitive issues. Most committees in the Northern Ireland Assembly are statutory committees linked to government departments. While these are not directly tasked with peacebuilding, some will focus on issues of importance for this such as Education and Justice. The Committee for the Office of the First Minister and deputy First Minister (OFMdFM) occasionally focuses more directly on peacebuilding work. For example, it launched aninquiry into the strategy for good relations and reconciliation in Northern Ireland: Together: Building a United Community (TBUC), which was published in 2005 (Potter 2014). Some ad hoc committees have also been set up to focus on aspects of the peace agreement, including the Ad Hoc Committee on a Bill of Rights. This bill of rights was mentioned in the Belfast Agreement, but has still not been created (Potter 2020). Due to minority veto provisions and the need for power-sharing governments to bring their communities with them in compromise, parliaments in these systems often become a site of national dialogue, whether formally or informally. This can be highly conflictual, and result in deadlocks, but can also promote cross-communal

collaboration. This will be further explored below. While formal inclusivity may be required as part of a peace settlement, inclusivity in parliamentary committees and inter-party collaboration is expected to be at least as important in contexts where the war ended with military victory and no peace agreement has been put in place. In the absence of a peace process, parliament has the potential to become a site for negotiation and interaction. In Sri Lanka, there are long traditions of ensuring formal inclusion in committees across ethnic cleavage barriers that persist within the party system. Such inter-party collaboration, especially across ethnic lines, has become especially important in the absence of a peace agreement and is seen as a way to secure legitimacy for specific legislation and to address minority parties' demands for representation in the policymaking process. However, as discussed below, such formal inclusion and cross-party collaboration is more likely to produce positive outcomes in relation to less contentious policy areas that are directly linked to the conflict. Supporters, spoilers or sidelined: the role of parliaments in peacebuilding .The extent to which parliament fulfils its role as opposition to the executive – and thereby is able to keep the executive in check – is also central to the formal function of parliament. Yet, assessing the relative role of parliament vis-à-vis the executive is not straightforward. In Sri Lanka following the 2015 election, in an attempt to rein in the opposition, President Sirisena sought to create a unity government inviting the main Tamil party, the Tamil National Alliance, to join. Although the TNA formally supported opposition candidate Sirisena's peace platform ahead of the 2015 election as well as his wider reform policies, the TNA decided not to join the unity government, deciding the party would instead remain in opposition until a political solution had been found that addressed the national question. Ultimately, parliament has become the main arena for seeking minority representation and importantly minority influence. Even though the party held allow number of parliamentary seats (16 out of 225), the TNA leader, Sampanthan was chosen as the Leader of the opposition and the TNA emerged as the main opposition party (Sindre 2019). Sri Lanka's parliament became a site for a national dialogue much like Northern Ireland, despite the former not having a formalpeace process. Ultimately, what these cases highlight is that inclusivity in post-conflict parliaments plays an important role in peacebuilding: it provides a voice to those who would otherwise feel excluded, ensures a level of protection for minority groups and moves conflicts away from the battlefield and into the political realm. However, the latter function also points to the possibility of tensions and disillusionment if expectations of change are not met. This is especially likely when it comes to the integration of former armed groups. In

addition, as some of the case studies highlight, due to the inherently political nature of parliaments, inclusive peace processes and well-articulated agreements that ensure gender quotas and women's representation may not be taken on board by MPs. Due to this inclusivity, which is often ensured through specific provisions in peace agreements, parliaments can become a forum for national dialogues and negotiation of hotly contested issues. Providing an opportunity for these issues to be debated is clearly important, but as the case studies suggest, reaching agreement on core conflict issues remains a huge challenge that many post-conflict parliaments will not be willing or able to rise to. We see this again when we look at how parliaments govern.

7. Follow-up and support to Reconciliation process for peacebuilding

Even if the process of reconciliation is needs to be free from the intervention of political actors, parliamentarians should provide positive support for the successfulness of reconciliation. In long-running inter-group/inter-ethnic conflicts, after successful negotiation, peacebuilding and reconciliation is necessary to prevent a return to the conflict. In this practice of peacebuilding, disputants/communities who are in conflict begin to heal and to rebuild relationships, slowly putting their society back together. Kriesberg (1998:322) suggests there are four aspects of reconciliation for peace:

• Truth (coming to acknowledge there is some merit to the other side's interpretation of events like conflict and violence),

• Justice (gaining redress as a means of putting the past to rest and learning from the past not to return to unjust practices),

• Regard (forgiveness on the part of victims), and

• Security (expectations of peaceful coexistence).

8. Conclusion and Recommendations

It is obvious that parliament can contribute to peacebuilding using various mechanisms like continuous policy making for peace, working to integrate combatants, reducing repressive nature of government, by making the executive and parliamentarians accountable to their action and decision. Parliaments also have a vital role to play in peacebuilding just by addressing contentious issues of conflict and relationship problems and by helping to equality and justice among

all groups of people, development, and rule of law. The ethnic based established government creates unjust relationships and treatments among the Ethiopian people. Thus, parliaments have the responsibility to improve the laws and regional constitutions for the quall treatment of all people. The parliament should work together and cooperatively using and initiating essential peacebuilding projects to prevent, manage, resolve and transform conflict at the local level. This study suggested that why most members of the Ethiopian parliament are supporter of the political agenda of the ruling party even in the time of national peace and security crisis.

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